

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 5/29/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
7	30-2023-01361611 UDR Eight80 I LP vs. Hood	The Court has read and considered the Defendant's Motion to Set Aside (Vacate) Judgment (ROA 53), Supplemental Declaration (ROA 58), Declaration of Angela Brown (ROA 57), and Plaintiff's Opposition (ROA 67). The Court takes Judicial Notice of the Stipulation for Entry of Judgment (ROA 39) and 2/6/2024 Minute Order. First, the Defendant attaches to his moving papers a UD-115 form that is not signed by the Plaintiff or the Court, nor filed-stamped by the Court. The "Stipulation" attached by the Defendant is not a true and correct copy of the Stipulation that was entered into by the parties. ROA 39 Stipulation for Entry of Judgment file stamped by the Orange County Superior Court on 2/6/2024 is a true and correct copy of the stipulation entered into by the parties and signed by the judicial officer at the time of the hearing, Commissioner Carmen Snuggs-Spraggins. The true and correct Stipulation (ROA 39) shows that no final lockout prior to March 7, 2024, and a money judgment was granted in favor of the Plaintiff for a total sum of \$15,119.80. The 2/6/2024 Minute Order shows that "The terms of the settlement are recited in open

		court. Each party indicates on the record that they understand and agree to the terms as stated.” California courts strongly favor voluntary settlements and will not set them aside absent a showing of fraud, undue influence, or similar grounds. (<i>Folsom v. Butte County Association of Governments</i> (1982) 32 Cal.3d 668, 676–677.) The Court DENIES the Motion to Set Aside or Vacate Judgment. The Court orders the Plaintiff to give notice of the Court’s ruling.
9	30-2025-01499897 Casa La Veta Associates vs. Erwin	The Court has read and considered the Defendant’s Motion to Set Aside or Cancel Judgment (ROA 44), Defendant’s Petition to Seal (ROA 42), Plaintiff’s Opposition to Motion to Set Aside Stipulated Judgment (ROA 59), and Plaintiff’s Opposition to Motion to Seal Record (ROA 61). The Court takes Judicial Notice of the Answer to Complaint (ROA 16), Request for Entry of Default (ROA 28), Notice of Hearing OC (ROA 31), Stipulation for Entry of Judgment (ROA 33), 10/7/2026 Minute Order (ROA 32), and Declaration of Default/Non-Compliance (ROA 56). As a threshold matter, the Defendant failed to serve her motions on the Plaintiff, which is grounds for the Court to deny the Defendant’s request alone. (California Rules of Court, Rule 3.1206; <i>Newsom v. Superior Court of Sutter County</i> (2020) 51 Cal.App.5th 1093, 1098-1100.) In order to avoid delays and multiple filings on the same issue, the Court will address the merits of the Defendant’s request, although not required to under the law, due to her lack of notice to the Plaintiff. California Code of Civil Procedure § 410.50 states, “A general appearance by a party is equivalent to personal service of summons on such party.” California Code of Civil Procedure § 1014 states, “A defendant appears in an action when the defendant answers, demurs, files a notice of motion to strike, files a notice of motion to transfer pursuant to Section 396b, moves for reclassification pursuant to Section 403.040, gives the plaintiff written notice of appearance, or when an attorney gives notice of appearance for the defendant.” Here, the Defendant filed an Answer with the Court on 8/15/2025, submitting to the Court’s jurisdiction. On October 7, 2025, the case was set for a Court Trial. There is no record that the Defendant requested a continuance of the Court either by motion or in open court. Defendant, in open court, had the terms of the Stipulation of Entry of Judgment she signed read to her by the Court and stated she agreed to the terms. (ROA 32 & 33) California courts strongly favor voluntary settlements and will not set them aside absent a showing of fraud, undue influence, or similar grounds. (<i>Folsom v. Butte County Association of Governments</i> (1982) 32 Cal.3d 668, 676–677.) Defendant says in her moving papers that she relied on another party to handle lease obligations, but she was the only person present in Court and the person who voluntarily signed the agreement. The Defendant provides no evidence to support a claim of fraud, undue influence, or similar grounds to disturb the Stipulation. The

		Defendant fails to meet her burden under California Code of Civil Procedure § 473. The Court DENIES the Defendant's Motion to Set Aside or Cancel Judgment. As to the Defendant's Motion to Seal Court Records, the Defendant describes hardships commonly associated with an eviction appearing on a person's record. Although the Court recognizes the Defendant's assertion that stable housing would particularly benefit her oldest child, those circumstances do not outweigh the public interest in access to court records. The Defendant entered into a stipulation providing that the record would remain sealed so long as the Defendant satisfied the judgment, including payment of past due rent, holdover damages, attorneys' fees, and costs, by March 31, 2026. The stipulation afforded the Defendant approximately five months and twenty-five days from the date of execution to comply with those terms. On April 19, 2026, the Court ordered the case unsealed following the Defendant's default and failure to comply with the terms of the stipulation. The Court finds that the Defendant has failed to meet her burden under California Rules of Court, rule 2.550(d). The Court DENIES the Defendant's Motion to Seal Court Records. The Court orders the Plaintiff to provide notice of the Court's ruling.
10	30-2026-01556559 Western National Securities vs. Veisaga	The Court has read and considered the Defendant's Motion to Set Aside Default and Default Judgment (ROA 31) and Plaintiff's Opposition (ROA 38). The Court takes Judicial Notice of the Answer (ROA 13), Request for Entry of Default (ROA 21), Notice of Hearing OC (ROA 24), 5/5/2026 Minute Order (ROA 25), and Notice of Entry of Judgment (ROA 30). The Defendant, Raquel Veisaga, filed a Motion to Set Aside Default and Default Judgment on 5/12/2026. Defendant received notice on April 21, 2026, at 7:55 AM that the Court would be holding a court trial on this unlawful detainer matter on 5/5/2026 at 8:30 AM in Department C61 (ROA 24). On 5/5/2026 at 9:43 AM, the Court called the court trial. Defendant failed to appear, Plaintiff proved their case, and judgment was entered in favor of the Plaintiff (ROA 25). Defendant states in her moving papers that on May 5, 2026, her car was towed, which she cites as the basis for her surprise and non-appearance in court. The Defendant fails to explain why, knowing she had a court trial scheduled for that morning at 8:30 AM, she did not use other means of transportation, including the public bus system, Uber, Lyft, or asking a friend for a ride. Defendant fails to establish her burden under California Code of Civil Procedure § 473(b). The Court views her actions as inexcusable neglect.

		The Court DENIES the Defendant's Motion to Set Aside Default and Default Judgment. The Court orders the Plaintiff to give notice of the Court's ruling.
11	30-2026-01561663 FC Orange Associates LP vs. Borden	The Court has read and considered the Plaintiff's Motion to Strike Defendant's Amended Answer to the Complaint (ROA 44) and the Defendant's Opposition (ROA 52). The Court takes Judicial Notice of the Amended Answer (ROA 31) and the Answer (ROA 16). On April 28, 2026, at 4:10 PM, the Defendants filed their original answer in pro per. On May 11, 2026, at 11:23 AM, Defendants thought their new counsel filed an amended answer on the same date as the substitution of attorney filing. Code of Civil Procedure §430.40 allowed the Defendants in this matter to file an amended answer within 10 days after filing their original answer. Defendant's counsel acknowledges that they were one day over the statutory deadline to file an amended answer. In California, public policy favors a trial on the merits rather than based on technical or procedural defaults, particularly in eviction actions where housing is at stake. Addition the Plaintiff alleges no prejudice or harm the Plaintiff suffered based on the small delay in the Defendant's filing. The Court DENIES the Plaintiff's Motion to Strike the Amended Answer. The Court orders the Defendant to give notice of the Court's ruling.
12	30-2025-01530495 FMMB Big Lakes, LLC vs. Alvarez	The Court has read and considered the Defendant's Ex Parte Stay of Execution of Writ of Possession (ROA 87) and Plaintiff's Opposition (ROA 94). The Court takes Judicial Notice of the Stipulation for Entry of Judgment (ROA 64) and Judgment-Unlawful Detainer (ROA 66). Defendant argues that the Court should enforce the stipulation signed by the parties and approved by the Court on April 1, 2026. In substance, however, Defendant seeks modification of the Stipulation and an order requiring Plaintiff to accept terms different from those agreed upon by the parties. The Stipulation expressly provides that "no stay of execution of Judgment of any kind or for any reason shall be allowed to any Defendants, or any third party." The Stipulation further states that "Defendants further confirm that they have reviewed this Stipulation with their Counsel." The parties specifically agreed that Defendant was required to close escrow on or before April 30, 2026, pursuant to detailed terms that included transfer by quitclaim deed. According to Defendant's own declaration, the escrow

		company will not complete the transaction because it will not accept a quitclaim deed and instead requires a grant deed. As a result, the transaction contemplated by the Stipulation was not completed under the agreed terms. California courts strongly favor voluntary settlements and will not set them aside absent a showing of fraud, undue influence, or similar grounds. (<i>Folsom v. Butte County Association of Governments</i> (1982) 32 Cal.3d 668, 676–677.) The Court declines to modify the parties' agreed-upon Stipulation. The agreed close-of-escrow date of April 30, 2026, has passed. Defendant did not complete the transaction in accordance with the terms of the Stipulation for Entry of Judgment. Accordingly, Plaintiff may proceed with enforcement of the Judgment pursuant to the terms of the Stipulation. The Court DENIES the Defendant's Motion to Enforce Agreement. The Court Clerk is to notify the Orange County Sheriff's Department to proceed with the lockout forthwith.
13	30-2025-01533683 Luk vs. Johnson	The Court has read and considered the Defendant's Motion of Attorney's Fees (ROA 26), Plaintiff's Opposition (ROA 37), Plaintiff's Request for Judicial Notice (ROA 35), Notice of Errata (ROA 39) and Defendant's Reply to Opposition (ROA 41). The Court takes Judicial Notice of Plaintiff's Exhibits 1, 2, and 3. The Court has notice of multiple related cases to this dismissed action, including 30-2026-01545106-CU-OR-CJC, the unlimited civil case in which Ms. Johnson is suing the landlord, and 30-2026-01545785-CL-UD-CJC, an active unlawful detainer proceeding between the parties before this Court. Because this action was voluntarily dismissed by the Plaintiff before any request to set the matter for trial, and because ruling on the request would require the Court to make factual determinations regarding issues that remain pending in Case No. 30-2026-01545785-CL-UD-CJC, the Court declines to exercise its discretion to award attorney's fees under Civil Code section 1946.2(h)(1)(B). Further, by Defendant's own admission, the same damages are being sought concurrently in the unlimited civil action. The Defendant, therefore, has an adequate remedy through the pending unlimited proceeding involving the same parties. The Court DENIES the Defendant's Motion for Attorneys' Fees and Costs.
14	30-2026-01562021 Sarena Chan As Trustee Of The Sarena Chan Trust vs. Camaruta	The Court has read and considered the Defendant's Motion to Dismiss (ROA 25). The Court takes Judicial Notice of the entire court docket regarding this matter.

		Defendants were served with the Summons and Complaint on 4/22/2026 per Proof of Service of Summons (ROA 36 & 40). Defendants filed this Motion to Dismiss (ROA 25) as their first filing with this Court. A Motion to Dismiss is an improper responsive pleading filed after being served with a complaint in an unlawful detainer action. Pursuant to California Code of Civil Procedure § 1170(a), the Defendant needs to file a motion to quash service of summons, a motion to strike, a demurrer to the complaint, or an answer. The Defendant's Motion to Dismiss is DENIED. The Defendant is to file a responsive pleading consistent with California Code of Civil Procedure § 1170(a) within 5 calendar days of receiving notice of the Court's ruling. The Plaintiff is to provide notice of the Court's ruling.
15	30-2025-01532461 Ngan Nguyen vs. Jesse M. Rickard, Trustee of the J&L Rickard 2006 Family Trust	As to the Discovery Motions, all other matters will be heard in Court: The Court has read and considered the Plaintiff's Motions: ROA 53, ROA 54, and ROA 55. The Plaintiff's Motion to Compel Responses to Form Interrogatories-Unlawful Detainer (Set One) is GRANTED. Defendant is hereby ordered to serve full and complete verified responses, without objection to Form Interrogatories-Unlawful Detainer, within 5 days of service of notice hereto. IT IS ORDERED that the Plaintiff's Motion to Deem Admitted All Matters In Plaintiff's Requests for Admission (Set One) be and hereby is granted and that the truth of all specified matters, and the genuineness of all specified documents, in the First Set of Requests for Admissions, propounded by Plaintiff and served on Defendant on April 3, 2026, be deemed admitted. The Plaintiff's Motion to Compel Responses to Requests for Production of Documents (Set One) is GRANTED. Defendant is hereby ordered to serve full and complete verified responses, without objection to Plaintiff's Request for Production of Documents (Set One), within 5 days of service of notice hereto. The Court orders the Defendant's Counsel, Ayinde Jones, SBN3 283668, forthwith to pay sanctions in the amount of \$1,125 to the Plaintiff. This sum shall be made payable to "AWB Law, P.C." within 5 business days and shall be delivered to 2040 Main Street, Suite 500, Irvine, CA 92614. The Plaintiff is ordered to provide electronic notice of this Court's order.
17	30-2026-01547207 Coach Royal-003, L.P. DBA Coach Royal Mobilehome Park v. Marquez	The Court has read and considered the Defendant's Notice of Intention to Move for New Trial and to Vacate Judgment; Combined Motion Under Code of Civil Procedure § 657 and 663 (ROA 95) and Plaintiff's Opposition (ROA 106).

	Counsel did not request a detailed statement of decision. After taking the matter under submission at the close of trial, the Court issued its ruling by minute order. Plaintiff met its burden of proof to establish the unlawful detainer action. The burden then shifted to Defendants to establish any affirmative defenses. Defendants' characterization of the testimony is not supported by the trial record. Ms. Garcia testified that, prior to her September conversation with Ms. Marquez, it had already been announced to the community that Ms. Garcia was the new resident manager of the mobile home park. Ms. Garcia further testified that three separate 3/90-day notices were served between September and December 2025. The first 3/90-day notice to pay rent was served in September 2025. Ms. Garcia testified that she spoke with Ms. Marquez at that time and advised her that the notices needed to be taken seriously and that the Park would no longer accept late rental payments. A second 3/90-day notice was served in November 2025 due to late rent, and Ms. Marquez complied with that notice by paying within the three-day period. In December 2025, Defendants were served with a third 3/90-day notice. Defendants did not tender payment within the statutory three-day period, and the matter was thereafter referred to counsel. The evidence established that Plaintiff served notices complying with applicable law, thereby providing Defendants an opportunity to cure the lease forfeiture arising from their failure to timely pay rent under the lease agreement. Ms. Marquez was expressly advised in September 2025 that future late payments would not be accepted. When Defendants failed to timely pay rent in November 2025, Plaintiff served the applicable 3/90-day notice, which Defendants cured within the statutory period. When Defendants again failed to timely pay rent in December 2025, Plaintiff served the applicable 3/90-day notice, but Defendants failed to comply within the statutory period. This action was initiated as a result of Defendants' noncompliance with the December 2025 notice. Ms. Marquez testified that, upon receiving the December 2025 notice, she understood that she would need to vacate the property and attempt to sell the mobile home. She testified that the highest offer she received was approximately \$50,000, but that the prospective purchaser ultimately withdrew. Ms. Marquez also testified that she received additional offers, including one for \$5,000, which she declined as inadequate. Ms. Marquez further testified that the updated title for the mobile home had been provided in May 2025 and that since then, Defendants had received three separate 3/60-day notices from the Park. She additionally testified that there had been "a lot of evictions in the park" since September 2025 and that she "felt targeted by the park." As Plaintiff correctly argued, Defendants cited no legal authority establishing that a tenant may cure a failure to timely pay rent after expiration of the statutory three-day period merely by paying a late fee. Plaintiff further noted that both the lease agreement and the 3/90-day notice contain express non-waiver provisions. Plaintiff also cited California Civil Code section 798.56(e)(5) in support of her position.
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		Defendants provided no legal authority at trial supporting their arguments. Counsel primarily argued that the statutory 60-day period to sell the mobile home was unfair. However, that timeline is established by California law and was not uniquely imposed upon Defendants by Plaintiff. The evidence established that Defendants repeatedly failed to timely pay rent, thereby triggering the statutory notices, and that Defendants failed to cure the December 2025 notice within the required three-day period. Ms. Garcia also testified that no prospective purchaser was ever presented to the Park and that no prospective purchaser submitted an application for tenancy approval. Accordingly, Defendants failed to meet their burden under California Code of Civil Procedure sections 657 and 663. The Court DENIES the Defendant's request to vacate the judgment and DENIES the request for a new trial. The Plaintiff is ordered to give notice of the Court's ruling.
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